Appendix E to the General Conditions of Tender

Letter of Tenderer's Consent and Authorization on Conviction Records (General Conditions of Tender Clause GCT 34)

To : Highways Department

Dear Sir/Madam,

Contract No. HY/2022/14

Modification Works of Noise Barriers along Yuen Long Highway near Park Signature

Letter of Consent and Authorization

We hereby give consent to the Highways Department to obtain from all relevant government departments/bureaux and authorize such relevant government departments/bureaux to release and make available to the Major Works Project Management Office of Highways Department information relating to our conviction records (if any), including the legislation violated, dates of offences, dates of convictions and the associated fine imposed by the court, site addresses, contract numbers and contract titles, for offences under the following ordinances (including all sub-legislation made thereunder) and specific sub-legislation (if any) for the purposes of assessment of [our submission]* in this tendering exercise.

(a) Section 27 of the Public Health and Municipal Services Ordinance (Cap 132);
(b) Section 17I and Section 38A of the Immigration Ordinance (Cap 115);
(c) Employment Ordinance (Cap 57);
(d) Factories and Industrial Undertakings Ordinance (Cap. 59);
(e) Occupational Safety and Health Ordinance (Cap. 509);
(f) Shipping and Port Control Ordinance (Cap. 313);
(g) Merchant Shipping (Local Vessels) Ordinance (Cap. 548);
(h) Air Pollution Control Ordinance (Cap. 311);
(i) Noise Control Ordinance (Cap. 400);
(j) Waste Disposal Ordinance (Cap. 354);
(k) Water Pollution Control Ordinance (Cap. 358);
(l) Dumping at Sea Ordinance (Cap.466);
(m) Ozone Layer Protection Ordinance (Cap. 403);
(n) Environmental Impact Assessment Ordinance (Cap. 499); and
(o) Hazardous Chemicals Control Ordinance (Cap. 595)

Note : * where GCT 34(2) applies, change to "the submission of [name of tenderer]"

We give further consent to the Major Works Project Management Office of Highways Department to furnish such information to the *Project Manager* designate, for the same purposes.

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(Signed for and on behalf of the tenderer or,
where GCT 34(2) applies, the relevant participant or,
as the case may be, shareholder)

Name of Witness: _____

Signature of Witness: _____

Occupation: _____